RIGHT TO INFORMATION ACT, 2005

OBLIGATIONS OF PUBLIC AUTHORITIES

MANUAL OF

LABOUR, EMPLOYMENT, TRAINING & FACTORIES DEPARTMENT

(PUBLISHED IN TERMS OF SECTION 4 (1) (b) OF R.T.I. ACT, 2005)

LABOUR, EMPLOYMENT, TRAINING & FACTORIES DEPARTMENT

ANDHRA PRADESH SECRETARIAT, HYDERABAD

I N T R O D U C T I O N

The Right to Information Act, 2005 is an Act to provide for setting out the practical regime of right to information for citizens to secure access to information under the control of public authorities, in order to promote transparency and accountability in the working of every public authority, the constitution of a Central Information Commission and State Information Commission and for matters connected therewith or incidental thereto.

Subject to the provisions of the Act, all citizens shall have the right to information and Sec 4 (1) (b) of the Act casts an obligation on each public authority to publish a manual on the functioning of each department.

This manual gives a comprehensive idea about the particulars, functions of the Planning Department and also the Powers and Duties of the employees including the channels of supervision and accountability.

This manual contains 17 chapters in all which gives information about the functioning of the Planning Department in a nut shell

C H A P T E R – I

Organization, Functions and Duties

[Section 4 (1)(b)(1)]

Sl. No.	Name of the Organisation	Address	Functions and Duties
1	Labour, Employment, Training and Factories Department	L Block 3rd Floor A.P. Secretariat, Hyderabad	The Labour Employment Training and Factories Department is a unit in the Andhra Pradesh Secretariat Organisation in the Andhra Pradesh Government. The Labour Employment Training and Factories Department is headed by the Principal Secretary to Government. The Department overseas/supervises the functions relating to the matters of Labour Disputes, Employment, Training, Factories, Boilers & E.S.I. matters etc., in the State of Andhra Pradesh. The organogram of the Department is shown in the Annexure. The Labour Employment Training and Factories Department deals with the following matters; Proposals and implementation of the Acts and Rules relating to matters of Labour Disputes, Employment, Training, Factories, Boilers & E.S.I. matters, Industrial Tribunals / Labour Courts , etc. Plan and non-plan budget matters for the above subjects. All cases relating to the ACB, Vigilance and Enforcement and A.P. Vigilance Commission relating to the Labour Employment Training and Factories Department. All disciplinary cases against the Officers and Employees of all categories of Labour Employment Training and Factories Department. All cases relating to Commissioner of Inquiries appointed for matters relating to Labour Employment Training and Factories Department. All service matters relating to the Head of the Departments under the control of Labour Employment Training and Factories Department. All matters relating to the Public Accounts Committee, Audit Reports including Comptroller and Auditor General of India reports/Inspection Reports/Draft Paragraphs relating to Labour Employment Training and Factories Department. All Policy matters relating to Labour Employment Training and Factories Department.

Chapter-2
Powers and Duties of Officers and Employees
[Section 4(1)(b)(2)]

Sl. No.	Name of the Officer / Employee Sri /Smt.	Designation	Duties allotted	Powers
1	2	3	4	5
1.	G. Anantha Ramu, I.A.S.	Principal Secretary to Government	Labour Employment Training & Factories Department is headed by Principal Secretary to Government, and he or she is assisted with the certain officers / staff. The Principal Secretary to Government is responsible for the careful observance of the Business Rules and Secretariat Instructions in the transaction of business in his Department. He exercise general supervision and control over the staff under him and is responsible for seeing that the members of the staff do the work allotted to them efficiently and expeditiously. It is his duty to take efficient steps for the prompt dispatch of business in the department	As envisaged in Business Rules.
2	T. Umamaheswara Rao	Joint Secretary to Government	The Joint Secretary to Government occupies a position almost identical with that of Secretary to Government in regard to subject allotted to him and can send cases for orders to the Secretary to Government. The Secretary to Government remains responsible for the subjects allotted to the Joint Secretary to Government in the Department. He is also the Liaison Officer for Assembly / Council.	As envisaged in Business Rules.
3	P.M. Sudhakar Naidu	Asst. Secy. to Govt	The Assistant Secretaries to Government exercise control over their Sections placed in his / her charge with regard to dispatch of business and in regard to maintaining discipline in the Sections.	
5	Five (5) posts	Section Officers	The Section officers are In-charge of a Section in the Department. Two Assistant Section Officers assist him. He is responsible of all files relating to the subjects allotted to the Assistant	

			Section Officers under him. He is directly responsible to the officers under whom he works for the efficient and expeditious dispatch of business in all stages in his Section. The training of the Assistant Section Officers under him is one of his principal functions. He himself under take to deal with the more difficult or important papers. He is not expected to express his views or to suggest what orders should be passed on a case when there is clear precedent or the case is of a routine nature. He should maintain a discipline in his Section.	
6	Eleven(11) posts	Assistant Section Officers	The main duties of an ASOs in dealing with cases relating to his / her section and expected to do work of a routine and mechanical nature such as maintaining the prescribed registers typing drafts fair copying dispatching and indexing.	
7	One (1) post	Stenographers	The Stenographers working as Private Secretaries to Secretary / Joint Secretary to Government will assist the officers in disposing of the work take dictations and type them and such other items of work as are entrusted to them.	
8	One (1)	T. C. A.	The TCA has to do routine and mechanical nature such as maintaining the prescribed registers typing drafts fair copying dispatching and indexing.	

Chapter 3
Procedure Followed in Decision-making Process
[Section 4(1) (b) (3)]

Activity	Description	Decision making process	Designation of final decision making authority
The procedure followed in the decision making process, including channels of supervision and accountability. The proposals of the Heads of the Departments under control of Labour Employment Training and Factories Department used to received in Tapal Section. On receipt of the same the tapal clerk gives Tapal number and keep all Tapal papers in a separate Tapal Book and send it to the officers concerned. On perusal of Tapal by the concerned officers, send back to the concerned sections. The concerned Assistant Section Officer make an entry in the personal register and put up the same in the shape of a file with relevant extracts of Acts and rules and submit the file to the concerned Section Officer. The Section Officer scrutinize the file and write his remarks, and pass on the file to the concerned Assistant Secretary. The Assistant Secretary scrutinizes the file and passes on the file to the Principal Secretary through the concerned Joint Secretary as the case may be. Files will be circulated to Minister/Chief Minister as prescribed in the Business Rules and Secretariat Instructions. If necessary by consulting advisory Departments viz., Finance / Law / GAD.			

Chapter 4
Norms set for the Discharge of Functions
[Section 4(1)(b)(iv)]

Sl.No.	Function / Service	Norms/standards of
The norms set by Labour Employment Training and Factories Department for the discharge of its functions. The usual office hours are from 10-30 a.m. to 5-00 p.m. After signing in the attendance Register all staff must be in their seats and start work not later than the prescribed hour. They will however be allowed grace time of ten minutes when there is real need. In departments of the Secretariat a daily detention list is submitted punctually in the prescribed form. The abstracts of pendency should be prepared showing only the current numbers of cases pending for (a) over three months, (b) Over six months (c) over one year and utilized, along with detention lists, to check delays.		

Chapter-5
Rules, Regulations, Instructions, Manual and Records, for Discharging Functions
[Section 4(1)(b)(v)] & (5)]

Sl. No.	Category of document	Title of document	Designation and address of the custodian (held by / under the control of whom)

The rules, regulations, instructions, manuals and records, held by Labour Employment Training and Factories Department or under its control or used by its employees for discharging its functions.

In the discharging functions the Department used to the following manuals and the records.

1	A.P. Factories & Establishments (National Festivals and other Holidays) Act, 1974
2	A.P. Factories Act, 1948
3	A.P. Muttah Jattu Hamali and other Manual Workers (Regulation of Employment & Welfare) Act, 1976.
4	A.P. Shops & Establishments Act, 1988
5	Andhra Pradesh Welfare Fund Act, 1987
6	Beedi & Cigar Workers (Conditions of Employment) Act, 1966
7	Building & Other Constriction Workers (Condition of Employment of Service) Act, 1996
8	Child Labour (Prohibition & Regulation) Act, 1986
9	Contract, Labour (Regulation and Abolition) Act, 1970
10	E.S.I. Act, 1948
11	Employment Exchanges (Compulsory Notification of Vacancies) Act, 1959
12	Equal Remuneration Act, 1976

13	Industrial Disputes Act, 1947
14	Industrial Employment (Standing Orders) Act, 1946
15	Interstate Migrant Workmen (Regulation of Employment & Conditions of Service) Act, 1979
16	Maternity Benefit Act, 1961
17	Minimum Wages Act, 1948
18	Motor Transport Workers Act, 1961
19	Payment of Bonus Act, 1965
20	Payment of Gratuity Act, 1972
21	Payment of Wages Act, 1936
22	Plantation Workers Act, 1951
23	Sales Promotion Employees (Condition of Service) Act, 1976
24	Trade Unions Act, 1926
25	Working Journalists and Other Newspaper Employees (Conditions of Service) & Miscellaneous Provisions Act, 1955
26	Workmen's Compensation Act, 1923.
27	Indian Boilers Act, 1923

Chapter-6

Categories of Documents held by the Public Authority under its Control
[Section 4(1)(b) (6)]

Sl.No.	Category of document	Title of the document	Designation and address of the custodian (held by/ under the control of whom)
A statement of the categories of documents that are held by Labour Employment Training and Factories Department or under its control.			
1.	Government Order (Miscellaneous)		
2.	Government Order (Routine)		
3.	Memo.		
4.	Letter		
5.	U.O. Note		
6.	Office Order(Miscellaneous)		
7.	Office Order (Routine)		
8.	Endorsement		
9.	D.O. Letter		

Chapter 7
Arrangement for Consultation with, or Representation by, the Members of the Public in relation to the Formulation of Policy or implementation thereof

[Section 4(1)(b)(7)]

Sl. No.	Function/service	Arrangements for consultation with or representation of public in relations with policy formulation	Arrangements for consultation with or representation of public in relations with policy implementation.
The particulars of any arrangement that exists for consultation with, or representation by, the members of the public in relation to the formulation of its policy or implementation thereof.			

Chapter 8
Boards, Councils, Committees and other Bodies
Constituted as part of Public Authority
[Section 4(1)(b) (8)]

Name of the Board, Council, Committee etc.	Composition	Powers & Functions	Whether its Meetings open to Public/Minutes of its meetings accessible for Public
A statement of the boards, councils, committees and other bodies consisting of two or more persons constituted as its part or for the purpose of its advice, and as to whether meetings of those boards, councils, committees and other bodies are open to the public, or the minutes of such meetings are accessible for public.			

Chapter 9
Directory of Officers and Employees
[Section 4 (1) (b) (9)]

A directory of its officers and employees;

Sl. No.	Name and Designation Sarvasri	Designated as	Telephone Nos. Official/ Cell
1	G. Ananatha Ramu, IAS	Principal Secretary to Govt.,	23457559(O) 23450053(Fax) 23450111 Ext:2270.
2	T. Umamaheswara Rao	Joint Secretary to Govt.,	9848876752 23450614(O) Ext.2325
3	P.M. Sudhakar Naidu	Assistant Secretary to Government	7799245635 Ext.2690
4	TRGB Ganga Raju	PS to Prl. secretary	7799163455
5	S.U.K.V. Sarma	Section Officer	7799003092
6	M. Mahaboob Basha	Section Officer	7799003094
7	K. Gopi Krishna	Section Officer	7799003095
8	P. Sarathchandra Ajay Babu	Section Officer	7799003096
9	S. Neelamaiah	Section Officer	7799003097
10	M. Anuradha	Asst. Section Officer	
11	S. Nirmala	Asst. Section Officer	
12	K. Kesava Nagappa	Asst. Section Officer	
13	G. Narasimham	Asst. Section Officer	
14	A. Srinivasa Rao	Asst. Section Officer	
15	V. Karuna	Asst. Section Officer	
16	Murali Kishore	Asst. Section Officer	
17	K. Veera Reddy	Asst. Section Officer	
18	T. Pandu Ranga Reddy	Asst. Section Officer	
19	K. Sailaja	TCA	
20	B. Ravi	Office Subordinate	

Chapter 10

Monthly Remuneration received by Officers and Employees, including the system of Compensation as provided in Regulations

[Section 4 (1)(b)(10)]

The monthly remuneration received by each of its officers and employees, including the system of compensation as provided in its regulations;

Sl. No	Name and Designation Sarvasri	Designation	Monthly remuneration including its compensation
1	G. Ananatha Ramu, IAS	Principal Secretary to Govt.,	173551
2	T. Umamaheswara Rao	Joint Secretary to Govt.,	105002
3	P.M. Sudhakar Naidu	Assistant Secretary to Government – I	76016
4	T.R.B.G. Ganga Raju	PS to Principal Secretary to Govt.,	93838
5	P. Sarath Chandra Ajay Babu	Section Officer	60772
6	K. Gopi Krishna	Section Officer	65761
7	S. Neelamaiah	Section Officer	48025
8	M. Mahaboob Basha	Section Officer	59230
9	S.U.K.V. Sarma	Section Officer	67555
10	Murali Kishore	Asst. Section Officer	40161
11	G. Narasimham	Asst. Section Officer	43678
12	K. Veera Raddy	Asst. Section Officer	41061
13	M. Anuradha	Asst. Section Officer	44900
14	T. Pandu Ranga Reddy	Asst. Section Officer	40161
15	K. Kesava Nagappa	Asst. Section Officer	44900
16	S. Nirmala	Asst. Section Officer	51304
17	V. Karuna	Asst. Section Officer	40161
18	A. Srinivasa Rao	Asst. Section Officer	44900
19	K. Sailaja	Typist cum Asst.	32898
20	B. Ravi	Office Subordinate	60022

Chapter 11
Budget Allocated to Each Agency including Plans etc.
[Section 4(1)(b)(11)]

Plan/Programme/Scheme/Project/ Activity/Purpose for which budget is allocated	Proposed expenditure	Expected Outcomes	Report on disbursements made or where such details are available (web site, reports, notice board etc.)

M.J.H.2251 M.H.090 SECRETARIAT, LABOUR AND EMPLOYMENT		Budget Estimate 2015-2016
110	Domestic Travel Expenses	
111	Traveling Allowance	1,35
120	Foreign Travel Expenses	
121	Foreign Travel Expenses	Nil
130	Office Expenses	
131	Service Postage, Telegram and Telephone Charges	1,45
132	Other Office Expenses	4,66
134	Hiring of Private Vehicles	3,00
	Total 130	9,11
240	Petrol, Oil and Lubricants	2,60
300	Other Contractual Services	12,30
510	Motor Vehicles	1,00
	Total 2251	1,85.70
	Total LABOUR AND EMPLOYMENT, SECRETARIAT DEPARTMENT	

The budget allocated to each of its agency, indicating the particulars of all plans proposed expenditures and reports on disbursements made.

(Rupees in Thousands)

Chapter 12
Manner of Execution of Subsidy Programmes
[Section 4 (1)(b)(12)]

Name of programme/activity	Nature/scale of subsidy	Eligibility criteria for grant of subsidy	Designation of officer to grant subsidy
- Nil -			

Name of programme/activity	Application Procedure	Sanction Procedure	Disbursement procedure
- Nil -			

Chapter 13

Particulars of Recipients of Concessions, Permit or Authorization Granted by the Public Authority

[Section 4 (1)(b) (13)]

Institutional Beneficiaries

Name ofprogramme/scheme				
Sl.No.	Name & Address of recipient institutions	Nature/quantum of benefit granted	Date of grant	Name & Designation of granting authority
-Nil -				

Name ofprogramme/scheme				
Sl.No.	Name & Address of recipientinstitutions	Nature/quantum of benefit granted	Date of grant	Name & Designation of grantingauthority
-Nil -				

IndividualBeneficiaries

Sl.No.	Name & Address of recipient beneficiaries	Nature/quantum of benefit granted	Date of grant	Name & Designation of grantingauthority
-Nil -				

Name of programme / scheme				
Sl.No.	Name & Address of recipient institutions	Nature/quantum of benefit granted	Date of grant	Name & Designation of granting authority
-Nil -				

Chapter 14

Information Available in Electronic Form

[Section 4(1) (b) (14)]

Electronic format	Description (siteaddress/location where available etc.)	Contents or title	Designation and address of the custodian of Information (held by whom ?)
A.P. On line facility is available for Labour, Employment, Training and Factories Department.	The Departmental information is available in the following website:- http://www.aponline.gov.in/		IT & C Dept.

Chapter 15

Particulars of facilities available to citizens for obtaining information

[Section 4(1) (b) (15)]

Facility	Description (Location of Facility/Name etc.,)	Details of Information made available
Notice Board	--	--
News Paper Reports	--	--
Public Announcements	--	--
Information Counter	--	--
Publications	--	--
Office Library	--	--
Websites	--	--
Other Facilities	--	--

Chapter 16

Names, Designations and other Particulars of Public Information Offices

[Section 4(1) (b) xvi]

Department Appellate Authority

Sr. No.	Name	Designation	STD Code	Phone Numbers		FAX	Email	Address
				Office	Home			
1	T. Umamaheswara Rao	Joint Secretary to Government	040	23450614				

Sl. No.	Name of Office/Admn Unit	Name & of Appellate Authority	Office/Resi. Tele	E-Mail
1	Labour, Employment, Training and Factories Department, A.P. Secretariat, Hyderabad	T. Umamaheswara Rao, Joint Secretary to Government	984887652 23450614(O) Ext.2325	---

Public Information Officer

Sl .No.	Name of Office / Admn.Unit	Name & Designation of PIO	Office Tel. Resi. Tel	E-Mail
1	Labour, Employment, Training and Factories Department, A.P. Secretariat, Hyderabad	P.M. Sudhakar Naidu, Assistant Secretary to Government	7799245635, Ext.2690	

Assistant Public Information Officer (s)

Sl. No.	Name of Office / AdminUnit	Name & Designation of APIO	Office Tel. Resi. Tel	E-Mail
1	Labour, Employment, Training and Factories Department, A.P. Secretariat, Hyderabad	S.U.K.V. Sarma, Section Officer K. Gopi Krishna, Section Officer P. Sarath Chandra Ajay Babu, Section Officer S. Neelamaiah, Section Officer M. Mahaboob Basha, Section Officer	7799003092 7799003095 7799003096 7799003097 7799003094	

Chapter 17

Other Useful Information

[Section 4(1)(b) (17)]

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